

		additional deposition of Teeple and Gardner, including expert fees. (Code Civ. Proc. § 2034.620, subd. (d).) Moving party has shown that expert witness amendment / augmentation is due to mistake, inadvertence, surprise, or excusable neglect; that plaintiffs have made and/or will make the experts available for deposition; and that a proposed amended witness list has been served. (Code Civ. Proc., § 2034.620, subd. (c)(2); Garrison Decl., ¶¶ 3-5, 11.) The court has considered the factors set forth in Code Civ. Proc. § 2034.620, and has determined that granting the requested relief on the conditions set forth above is in the interest of justice. Moving parties shall give notice of this ruling.
58.		
59.		
60.	Bianca v. Panda Motors, Inc. 2023-01300577	Plaintiff Guiseppe Bianca's motion to strike the Memorandum of Costs filed by defendant Panda Motors, Inc. dba California Motors Direct is GRANTED. California Rules of Court, Rule 3.1700(a)(1) establishes the fundamental timing requirement: "A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first." When service is by mail, the time to file the memorandum is extended by five calendar days. Ca. Civ. Pro. § 1013. Judgment was entered on December 2, 2025 (ROA 145.) Notice of Entry of Judgment was filed and served by Panda on December 5, 2025 (ROA 154.) As such, the Memorandum of Costs should have been filed no later than December 26, 2025 (15 days plus 5 for mailing.) It was not filed until February 5, 2026 (ROA 154.) The time provisions for filing a memorandum of costs, while not jurisdictional, are mandatory, and a party who fails to timely file is deemed to have waived the right to recover costs if the opposing party timely moves to strike. <i>Hydratec, Inc. v. Sun Valley 260 Orchard & Vineyard Co.</i> (1990) 223 Cal.App.3d 924.

		As plaintiff moved to strike, the memorandum of costs is ordered STRICKEN. Plaintiff shall give notice of this ruling.
61.		
62.	Ozbasaran v. Tesla, Inc. 2025- 01490249	Defendant Tesla, Inc.'s Motion to Compel Arbitration is GRANTED. Plaintiff's Objections to the Declaration of Raymond Kim are SUSTAINED as to Objection Nos. 1, 4 and 5. Objection Nos. 2, 3, 6, 7 and 8 are OVERRULED. Defendant's request for judicial notice is GRANTED. Tesla moves to compel Plaintiff Orhan Ozbasaran arbitration pursuant to the Federal Arbitration Act ("FAA"), 9 U.S.C. §§ 1-16, and Code of Civil Procedure section 1281 et seq. A court's role in considering a petition to compel arbitration under the FAA is limited to "determining (1) whether a valid agreement to arbitrate exists and, if it does, (2) whether the agreement encompasses the dispute at issue. If the response is affirmative on both counts, then the Act requires the court to enforce the arbitration agreement in accordance with its terms." (<i>Chiron Corp. v. Ortho Diagnostic Sys. Inc.</i> (9th Cir. 2000) 207 F.3d 1126, 1130.) Existence of Arbitration Agreements Under Code of Civ. Proc. §1281.2, the first thing the Court must decide is whether there was an agreement to arbitrate, a meeting of the minds. (<i>Mitri v. Arnel Management Co.</i> (2007) 157 Cal.App.4th 1164, 1169.) This analysis is no different under the Federal Arbitration Act ("FAA") – there must be an agreement in writing to submit a controversy to arbitration. (9 U.S.C.A. § 2.) "In determining the existence of an agreement to arbitrate, the trial court must employ a three-step burden shifting process. The party seeking to compel arbitration bears an initial burden to show an agreement to arbitrate; that burden can be met by providing a copy of the alleged agreement. If that initial burden is met, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement's existence, thereby shifting the burden back to the arbitration proponent. At that point, and "[b]ecause the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the